

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Connors	Team: Squad #09	CCRB Case #: 201603149	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 04/11/2016 2:40 PM	Location of Incident: Springfield Boulevard and 143rd Road	18 Mo. SOL 10/11/2017	Precinct: 105
Date/Time CV Reported Wed, 04/13/2016 1:42 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 04/13/2016 1:42 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Ronald Humphrey	01601	932838	QB SSZN
2. POM Terrance Smalls	03160	939481	PSA 2

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Nina Dill	04754	891460	YTH SS
2. POF Natarsha Oneil	03852	937220	YTH SS

Officer(s)	Allegation	Investigator Recommendation
A . POM Ronald Humphrey	Abuse: Police Officer Ronald Humphrey stopped § 87(2)(b)	A . Substantiated
B . POM Terrance Smalls	Abuse: Police Officer Terrance Smalls stopped § 87(2)(b)	B . Substantiated
C . POM Terrance Smalls	Force: Police Officer Terrance Smalls used physical force against § 87(2)(b)	C . Unsubstantiated
D . POM Ronald Humphrey	Discourtesy: Police Officer Ronald Humphrey spoke discourteously to § 87(2)(b)	D . Substantiated
E . POM Ronald Humphrey	Abuse: Police Officer Ronald Humphrey issued a summons to § 87(2)(b)	E . Substantiated

Case Summary

On April 13, 2016, this complaint was filed via the Automated Call Processing System by Sergeant Fung Chen of the 105th Precinct on behalf of § 87(2)(b)

On April 11, 2016, at approximately 2:40 p.m., § 87(2)(b) and § 87(2)(b) were walking north bound along Springfield Boulevard towards the Q77/Q85 bus stop in Queens when they observed a marked police van slowly driving in the same direction. Inside of this van, § 87(2)(b) observed PO Ronald Humphrey and PO Terrance Smalls of the 103rd/105th Precinct Mobile Unit. § 87(2)(b) approached the front passenger side of the van where PO Humphrey was seated and asked for his name and shield number. PO Humphrey verbally provided § 87(2)(b) with his name and shield number. After obtaining this information, § 87(2)(b) returned to the sidewalk where § 87(2)(b) was waiting. PO Humphrey and PO Smalls then exited their vehicle and approached § 87(2)(b) on the sidewalk (**Allegations A and B**). PO Smalls told § 87(2)(b) to walk away and § 87(2)(b) complied. PO Humphrey then asked § 87(2)(b) for his identification. § 87(2)(b) refused to provide his identification and asked why he needed to provide it. PO Humphrey replied that he was going to issue him a summons for loitering. PO Smalls then allegedly shoved § 87(2)(b) towards PO Humphrey (**Allegation C**). PO Humphrey asked for § 87(2)(b)'s identification again and § 87(2)(b) complied. PO Humphrey returned to the police van while PO Smalls stayed with § 87(2)(b). Approximately five minutes later, PO Humphrey returned and asked § 87(2)(b) to provide his first name. § 87(2)(b) refused and stated that his name could clearly be read on his identification. PO Humphrey then said § 87(2)(b) “Bro do you know what is so funny about ya’ll, if ya’ll we’re in Jamaica you would have had your ass kicked right about now” and “If ya’ll were in Jamaica, ya’ll would have gotten the shit slapped out of you right about now” (**Allegation D**).

After obtaining § 87(2)(b)'s first name, PO Humphrey returned to the police van. During this time, Sgt. Nina Dill and PO Nartasha O’Neil of the 103rd/105th Precinct Mobile Unit arrived on scene as school let out and a crowd of students began to gather. Approximately ten minutes later, PO Humphrey returned and issued § 87(2)(b) a summons for loitering within 1,000 yards of school grounds (**Allegation E**) (**Board Review 14**). After the issuance of the summons, § 87(2)(b) left the area and had no further interaction with these officers (**Board Review 01**). § 87(2)(b) was summonsed but not arrested as a result of this incident.

§ 87(2)(b) provided cell phone video footage that captures, in part, the incident which can be seen below. The full video can be viewed in IA# 35.



2016-09-13_11-24-40§ 87(2)(b).mp4

§ 87(2)(g)
The video was taken by § 87(2)(b) using his cell phone.

At 2:14 in this clip in the original video footage, PO Humphrey is heard replying to an individual off screen, whom the investigation did not identify, and § 87(2)(b) “Bro do you know what is

so funny about ya'll, if ya'll we're in Jamaica you would have had your ass kicked right about now" and "If ya'll were in Jamaica, ya'll would have gotten the shit slapped out of you right about now" (**Allegation D**) (**Board Review 02**).

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- Mediation was offered to § 87(2)(b) however he rejected mediation § 87(2)(b).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of September 9, 2016, § 87(2)(b) has not filed a Notice of Claim with the New York City Comptroller's Office in regards to this complaint (**Board Review 04**).

Civilian and Officer CCRB Histories

- This is the second CCRB complaint filed by § 87(2)(b) (**Board Review 05**). § 87(2)(b) previously filed another complaint for a separate incident § 87(2)(b) which involved PO Humphrey.
- PO Ronald Humphrey has been a member of service for 13 years and this is his third CCRB complaint. In case number 201603248, § 87(2)(b) filed a complaint against PO Humphrey for a separate incident. This case is currently waiting to be reviewed by Board Panel 9A-2016. In case number 200403449, one allegation of force and abuse of authority were pled. In this case, the allegations were unfounded or exonerated by the CCRB. § 87(2)(g) (**Board Review 06**).
- PO Terrance Smalls has been a member of service for 11 years and this is his first CCRB complaint (**Board Review 07**).

Potential Issues

- The investigation exhausted attempts to locate § 87(2)(b) whom § 87(2)(b) stated was present during the incident.

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Ronald Humphrey stopped § 87(2)(b)

Allegation B – Abuse of Authority: Police Officer Terrance Smalls stopped § 87(2)(b)

On April 11, 2016, at approximately 2:40 p.m., § 87(2)(b) and § 87(2)(b) were walking to a bus stop located across the street from Springfield Boulevard High School when § 87(2)(b) observed PO Humphrey in the passenger seat of a marked police van driving alongside them. § 87(2)(b) approached the van and asked PO Humphrey for his name and shield number, in relation to an earlier incident that had taken place on April 8, 2016. PO Humphrey provided his name and shield to § 87(2)(b) § 87(2)(b) then returned to the sidewalk. After § 87(2)(b) walked away, PO Humphrey told § 87(2)(b) twice that he needed to leave the area during

school dismissal. § 87(2)(b) left the area but § 87(2)(b) refused each command. PO Humphrey and PO Smalls exited from their vehicle and approached § 87(2)(b). PO Humphrey asked § 87(2)(b) for his identification. § 87(2)(b) refused to provide his identification and asked PO Humphrey what crime he had committed. PO Humphrey asked § 87(2)(b) once again for his identification and § 87(2)(b) provided it. PO Humphrey then told § 87(2)(b) that he was going to issue him a summons.

PO Humphrey was assigned to school safety at Springfield Gardens High School for school dismissal. PO Humphrey stated that he observed § 87(2)(b) and two other male individuals standing at the corner of 143rd Road and Springfield Boulevard. PO Humphrey was inside a marked police van facing east bound with PO Smalls when he observed this. PO Humphrey told PO Smalls that § 87(2)(b) had been involved in an earlier altercation that had taken place on April 8, 2016 in front of the school. Approximately five minutes after observing § 87(2)(b) PO Humphrey and PO Smalls completed a U-turn on Springfield Boulevard and drove west bound until they were alongside § 87(2)(b) and the male individuals. PO Humphrey stated that § 87(2)(b) approached his vehicle and asked for his name and shield, which he provided. PO Humphrey stated that he asked § 87(2)(b) twice to leave the area because school was going to be dismissed soon. The male individuals began walking away; however § 87(2)(b) refused to leave. PO Humphrey and PO Smalls exited from their van and approached § 87(2)(b). PO Humphrey asked for § 87(2)(b)'s identification, which § 87(2)(b) refused to provide. § 87(2)(b) told PO Humphrey that if he had committed a crime, then PO Humphrey should summons him. PO Humphrey asked § 87(2)(b) a second time for his identification, at which point § 87(2)(b) provided it. PO Humphrey returned to his vehicle, leaving § 87(2)(b) with PO Smalls. Approximately ten minutes later, PO Humphrey returned and issued § 87(2)(b) a summons for loitering. § 87(2)(b) then left the area. PO Humphrey never asked § 87(2)(b) if he had any reason to be in the vicinity of the school or why he was standing on the corner **(Board Review 08)**.

PO Smalls stated that PO Humphrey observed § 87(2)(b) and two male other individuals standing across the street from Springfield Gardens High School. PO Humphrey told PO Smalls that one of the individuals was § 87(2)(b) whom he knew from a previous incident on April 8, 2016. PO Smalls stated that after observing § 87(2)(b) for approximately five minutes, they drove to speak with § 87(2)(b) and the male individuals. PO Smalls and PO Humphrey told § 87(2)(b) and the individuals to leave the area because school was going to be dismissed soon. The male individuals walked away but § 87(2)(b) refused to leave. PO Humphrey then asked § 87(2)(b) twice to leave the area. PO Humphrey told § 87(2)(b) to leave because he had been involved in an altercation that had taken place on April 8, 2016. § 87(2)(b) again refused to leave the vicinity. PO Smalls and PO Humphrey exited their vehicle and approached § 87(2)(b). PO Humphrey asked § 87(2)(b) for identification and § 87(2)(b) complied. PO Humphrey returned to the vehicle, leaving § 87(2)(b) with PO Smalls. Approximately ten minutes later, PO Humphrey returned and issued § 87(2)(b) a summons for loitering. PO Smalls never asked § 87(2)(b) if he had any reason to be in the vicinity of the school. PO Smalls did not remember if PO Humphrey asked § 87(2)(b) if he had any reason to be in the vicinity of the school. PO Smalls did not remember if § 87(2)(b) provided any explanation for why he was standing on the corner **(Board Review 09)**.

People v. De Bour, 40 N.Y.2d 201 (1976) allows officers to stop individuals whom they reasonably suspect are engaging in, have engaged in, or are about to engage in acts of criminality (**Board Review 10**).

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **substantiated**.

Allegation C – Force: Police Officer Terrance Smalls used physical force against § 87(2)(b)

As PO Humphrey and PO Smalls exited their vehicle and approached § 87(2)(b) § 87(2)(b) alleged that PO Smalls shoved him.

PO Smalls denied shoving § 87(2)(b) PO Smalls did not remember making any physical contact with § 87(2)(b) whatsoever. PO Humphrey denied seeing PO Smalls shove § 87(2)(b) or having any physical contact with § 87(2)(b) whatsoever.

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation D – Discourtesy: Police Officer Ronald Humphrey spoke discourteously to

§ 87(2)(b)

§ 87(2)(b) stated that while waiting to be issued a summons, PO Humphrey returned from his vehicle to clarify the first name on his identification. § 87(2)(b) told PO Humphrey that his name can clearly be read from his identification. During this interaction § 87(2)(b) who has a heavy West Indian accent, told PO Humphrey that he was violating his human rights. During this exchange, PO Humphrey responded by stating, in sum and substance, “that if § 87(2)(b) were back in Jamaica he would have had his ass kicked and the shit slapped out of him.”

PO Humphrey initially denied directing any profanity towards § 87(2)(b) PO Smalls and Sgt. Dill initially denied hearing PO Humphrey direct any profanity towards § 87(2)(b) After reviewing the video footage, PO Humphrey admitted to directing profanity towards § 87(2)(b) (**Encl. Board Review 08**). After reviewing the video footage, PO Smalls and Sgt. Dill identified

the officer who directed profanity towards § 87(2)(b) as PO Humphrey (**Encl. Board Review 09) (Board Review 11).**

NYPD Patrol Guide Section 203-09 (2.) states that an officer must be courteous and respectful (**Board Review 12).**



2016-09-13_11-24-40§ 87(2)(b).mp4

The above video footage clearly shows PO Humphrey directing profanity at § 87(2)(b) and possibly another individual off screen in the crowd. This individual was unable to be identified by the investigation.

§ 87(2)(g)

Therefore, it is recommended that this Allegation D be closed as **substantiated**.

Allegation E – Abuse of Authority: Police Officer Ronald Humphrey issued a summons to

§ 87(2)(b)

§ 87(2)(b) stated that he and § 87(2)(b) were walking towards the Q77/Q85 bus stop located in the vicinity of Springfield Gardens High School in Queens when he observed PO Humphrey and PO Smalls inside of a marked police vehicle. § 87(2)(b) approached PO Humphrey and asked for his name and shield number, which were provided by PO Humphrey. As § 87(2)(b) walked back to the sidewalk, PO Humphrey and PO Smalls exited their vehicle and told § 87(2)(b) to vacate the vicinity. When § 87(2)(b) refused to do so, § 87(2)(b) § 87(2)(b), the officers asked for his identification. § 87(2)(b) asked the officers what crime he committed. PO Humphrey told him that he was involved in a previous altercation and had to leave the area. After initially refusing to provide his identification, § 87(2)(b) § 87(2)(b) provided his identification to PO Humphrey. PO Humphrey then walked to his vehicle. Approximately ten minutes later, PO Humphrey returned and issued § 87(2)(b) a summons for loitering.

PO Humphrey stated that he observed § 87(2)(b) whom he recognized from an earlier incident on April 8, 2016 and other male individuals standing across the street from Springfield Gardens High School. Approximately five minutes later, PO Humphrey and PO Smalls drove up to § 87(2)(b) § 87(2)(b) and his companions and told them to disperse from the area because of an upcoming school dismissal. § 87(2)(b) refused to leave the vicinity § 87(2)(b) § 87(2)(b). PO Humphrey and PO Smalls then exited from their vehicle and approached § 87(2)(b) PO Humphrey asked § 87(2)(b) to leave, however once again, § 87(2)(b) § 87(2)(b) refused. PO Humphrey asked § 87(2)(b) for identification and § 87(2)(b) § 87(2)(b) responded by asking what crime he had committed. PO Humphrey told § 87(2)(b) he was loitering and asked § 87(2)(b) again for identification. § 87(2)(b) § 87(2)(b) complied. PO Humphrey returned to his vehicle to write the summons. Approximately ten minutes later, PO Humphrey returned and issued § 87(2)(b) a summons for loitering. PO Humphrey stated he decided to issue § 87(2)(b) a summons after his repeated refusals to disperse and failure to provide

